

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-000715

GEORGE EDWARD YESKE, III and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

MOTION IN LIMINE

COMES NOW, the Plaintiff, by and through the undersigned counsel, and moves this Court in Limine to exclude from the evidence in the trial of this cause:

1. The Testimony of C. Nate Nelson. Mr. Nelson was served with a subpoena for trial in this cause. Mr. Nelson was served in the State of Utah, he has no residence in the State of Florida, and although he is a manager of Colonial Manor MHC Holdings, LLC., the witness no evidence and is not the custodian of relevant to whether the Defendant paid rent to the Plaintiff.
2. Any evidence of whether the mobile home was damaged. Evidence of mobile home damage is not relevant to whether the Defendant paid rent to the Plaintiff, pursuant to Fla. Stat. §723.061. First, mobile home park landlord tenant relations are governed solely by Fla. Stat. Chapter 723. Fla Stat. §723.002. Second, the Plaintiff rents lots to tenants, not mobile homes, including Defendant's mobile home. Third, in his pleadings, Defendant has not accused the Plaintiff of interfering with Defendant's utilities or engaging otherwise in a constructive eviction (denying Defendant access to his property on the lot).
3. Evidence of the condition of the premises, or whether the property has been examined by representatives of City of Palmetto Code Enforcement, should be excluded from the evidence presented in this cause. Literally, the Plaintiff rents the real property to the Defendant, and cannot rent the premises to anyone else with Defendant's personal property on it, and Defendant entitled to possession of the premises. The evidence of the condition of the property is not relevant to the cause of action.

Respectfully submitted on this 21st day of November, 2025.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion in Limine has been has been furnished in accordance with Florida Rules of Judicial Administration 2.516 through Florida Courts E-Filing Portal upon the Defendant, GEORGE EDWARD YESKE, III, at 14382 O'Neal Road, Gulfport, MS 39503 and at george.yeske@gmail.com and to GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #38, Palmetto, Florida, 34221, on this 21st day of November, 2025.



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